



DEPARTMENT OF HUMAN SERVICES

Juvenile Parole Board

JUVENILE PAROLE BOARD

12 CCR 2517-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Revisions to Section 28.100 were adopted following publication by the Juvenile Parole Board, effective 12/1/2004. Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Enterprise Partnerships, Division of Boards and Commissions, State Board Administration.

Revisions to Sections 28.100-28.110 were final adoption following publication at the 11/13/2013 Juvenile Parole Board meeting (Rule-making# JPB 13-6-20-1), with an effective date of 1/14/2014. Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Enterprise Partnerships, Division of Boards and Commissions, State Board Administration.

28.100 JUVENILE PAROLE BOARD

28.110 Parole Decision Criteria [Rev. eff. 1/14/14]

Parole release decisions shall be made in a manner that is in the best interests of the juvenile, the victim, and the community. In making a decision concerning the granting of parole, each member shall consider the following criteria:

A. Juvenile

1. The number and severity of the committing offense(s) and other adjudications or convictions.
2. The juvenile's successes and negative behaviors in a program while in the Division of Youth Corrections commitment and while on parole.
3. The existence of an acceptable parole plan that provides a foundation for the youth to successfully transition into the community.
4. The review of the juvenile's therapeutic, educational, and behavioral progress within Division of Youth Corrections programs.
5. The results of the objective risk assessment administered by the State of Colorado Department of Human Services, the Division of Youth Corrections.

B. Victim

1. The rights of the crime victims as defined by the Victims Rights amendment, Section 24-4.1-301 through 24-4.1-304, C.R.S.
2. Demonstrated understanding of the victim impact and safety concerns.

C. Community

1. The juvenile's adjustment into the community as evidenced by conduct during home passes, school, work, special events or other community release.
2. The juvenile's payment of restitution and completion of community services hours as required by the courts.
3. Demonstrated understanding of community safety.

Editor's Notes

History

Rule 28.100 eff. 12/01/2004.

Entire rule eff. 01/14/2014.